

12. S-CV-0057603 The Travelers Indemnity Co. v. Smith, James

Defendant's motion to compel arbitration and motion to stay is continued to **October 6, 2026 at 8:30 a.m. in Department 32.**

13. S-CV-0057622 Cynthia L Anderson v. Hanna, Pamela K

Defendant's Demurrer to Complaint

Defendant's request for judicial notice is granted.

Defendant demurs to the plaintiff's complaint in its entirety.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Fourth, Sixth and Seventh Causes of Action

Plaintiff concedes the fourth cause of action for conversion, sixth cause of action for constructive trust, and seventh cause of action for civil conspiracy are not adequately pleaded. The demurrer is sustained as to the fourth and seventh causes of action with leave to amend. As to the sixth cause of action for constructive trust, leave to amend is denied as constructive trust is a remedy and not a cause of action.

First Cause of Action
(Financial Elder Abuse)

Defendant demurs to the first cause of action for financial elder abuse based on the failure to allege sufficient facts to constitute a valid cause of action.

To state a claim for financial elder abuse, plaintiff must allege facts showing that defendant took, secreted, appropriated, obtained, or retained property of an elder for a wrongful use, with intent to defraud, or by undue influence. (Welfare and Institutions Code section 15610.30.) Here, plaintiff adequately alleges standing as a successor-in-interest. (Welf. & Inst. Code § 15657.3(d); *Lickter v. Lickter* (2010) 189 Cal.App.4th 712, 732.) However, the complaint fails to allege facts showing defendant took, secreted, appropriated, obtained, or retained property of plaintiff's mother. Instead, plaintiff alleges defendant orchestrated trust amendments which harmed plaintiff.

As to the first cause of action for financial elder abuse, the demurrer is sustained with leave to amend.

*Second Cause of Action
(Breach of Fiduciary Duty)*

Defendant demurs to the second cause of action for breach of fiduciary duty based on lack of standing and failure to allege sufficient facts to constitute a valid cause of action. The complaint alleges defendant was in a fiduciary relationship with plaintiff's mother, and breached her fiduciary duties to plaintiff's mother, ultimately causing harm to plaintiff. The opposition argues there are two theories of breach of fiduciary duty, which plaintiff intends to plead as successor-in-interest, and in her individual capacity. The second cause of action does not allege defendant and plaintiff were in a confidential or fiduciary relationship and at best appears to conflate these two theories.

As to the second cause of action for breach of fiduciary duty, the demurrer is sustained with leave to amend.

*Third Cause of Action
(Constructive Fraud)*

Defendant demurs to plaintiff's third cause of action for constructive fraud.

To state a claim for constructive fraud plaintiff must show (1) a fiduciary relationship, (2) nondisclosure, (3) intent to deceive, and (4) reliance and resulting injury. (Civ. Code, § 1573; *Stokes v. Henson* (1990) 217 Cal.App.3d 187, 197.) Constructive fraud must be pled with specificity. (*Schauer v. Mandarin Gems of Cal., Inc.* (2005) 125 Cal.App.4th 949, 960-61; *Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1249-50.) Here, the complaint fails to allege all requisite elements with specificity.

As to the third cause of action for constructive fraud, the demurrer is sustained with leave to amend.

*Fifth Cause of Action
(Unjust Enrichment)*

Defendant demurs to plaintiff's fifth cause of action for unjust enrichment on the grounds it is not an independent cause of action under California law absent an underlying basis for restitution.

"Unjust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself. (*Dinosaur Development, Inc. v. White* (1989) 216 Cal.App.3d 1310, 1315.) It is synonymous with restitution. (*Id.* at p. 1314; *see also Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App.4th 779, 793.) The elements of an unjust enrichment or restitution claim are receipt of a benefit and unjust retention of

the benefit at the expense of another (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238.) Based on the court's review of the complaint as a whole, it adequately alleges facts to support a claim for unjust enrichment or restitution.

As to the fifth cause of action for unjust enrichment, the demurrer is overruled. In summary, the demurrer is overruled as to the fifth cause of action. The demurrer is sustained with leave to amend as to the first, second, third, fourth, and seventh causes of action. The demurrer is sustained as to the sixth cause of action without leave to amend.

Any amended complaint shall be filed and served on or before **October 2, 2026**.

14. S-CV-0058242 In re the Petition of Ray, Robyn

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)
